

The M.P. Legislative Assembly Members (Free Transit by Railway) Rules, 1978

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State of Madhya Pradesh - Act

The M.P. Legislative Assembly Members (Free Transit by Railway) Rules, 1978

MADHYA PRADESH

India

The M.P. Legislative Assembly Members (Free Transit by Railway) Rules, 1978

Rule THE-M-P-LEGISLATIVE-ASSEMBLY-MEMBERS-FREE-TRANSIT-BY-RAILWAY-RULES-1978 of 1978

Published on 6 December 1978

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The M.P. Legislative Assembly Members (Free Transit by Railway) Rules, 1978

Published vide Notification No. F. 4-78-21-A (P.A.), dated 6-12-1978, M.P. Rajpatra (Asadharan), dated 7-12-78 at page 2738

In exercise of the powers conferred by clause (aa) of sub-section (2) of Section 9 read with Section 5-A of the Madhya Pradesh Vidhan Sabha Sadasya Vetan, Bhatta Tatha Pension Adhiniyam, 1972 (No. 7 of 1973), the State Government hereby makes the following rules, namely :-

1.

Short title.

- These rules may be called the Madhya Pradesh Legislative Assembly Members (Free Transit by Railway) Rules, 1978.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"the Act" means the Madhya Pradesh Vidhan Sabha Sadasya Vetan, Bhatta Tatha Pension Adhiniyam, 1972 (No. 7 of 1973);

(b)

"Coupon Book" means a railway travel coupon book as issued to a member for himself and [one person]

[Substituted by Notification No. 532-XXI-A (P.A.), dated 23-1-1986.]

accompanying him under these rules;

(c)

["Secretary" means the Secretary of the Madhya Pradesh Legislative Assembly and includes any other officer of the Vidhan Sabha as may be authorised by the Speaker for the purposes of these rules]

[Substituted by Notification No. 3834-F-4-80(P.A.)-XXI-A, dated 4-2-1980.]

3.

[Members to be provided with coupon books.

[Substituted by Notification No. 2389-One(2)-63-XLVIII-2001 (P.A.), dated 24-12-2001.]

- Subject to the provisions of the Act and these rules, every member shall be provided by the Secretary with sets of coupon books, which shall entitle him,-

(i)

to travel alone by First-class air-conditioned; or

(ii)

to travel by First-class or by air-conditioned sleeper coach or by Second-class sleeper coach or by Second-class with one person accompanying him,

by any rail within the State of Madhya Pradesh without any restriction and outside the State of Madhya Pradesh only to extent of 6000 kilometres during a year computed in accordance with the provisions of Rule 11.]

4.

Requisition for supply of coupon books.

(1)

The Secretary shall, whenever necessary make a requisition on the General Manager, Central Railway Bombay, for the supply of coupon books for use by the members in accordance with these rules.

(2)

[On receipt of the requisition, the General Manager, Central Railway, Mumbai shall supply the Secretary, First class air-conditioned or first class or air-conditioned sleeper coach coupon books or second class or second class sleeper coach coupon books which can be used for travel on any Indian Railway by members and persons accompanying them and raise the necessary debit against the State of Madhya Pradesh] [[Substituted by M.P. Notification No. 2389-One(2)-63-XLVIII-2001 (P.A.), dated 24-12-2001. Prior to substitution it read as under:

'(2) On receipt of the requisition, the General Manager, Central Railway, Bombay shall supply the Secretary first class or air-conditioned sleeper coach coupon books second class or second class sleeper coach coupon books which can be used for travel on any Indian Railway by members and persons accompanying them and raise the necessary debit against the State of Madhya Pradesh.']].

5.

Money value for which coupon books will be available.

- [(1)]

[Substituted by Notification No. 532-XXI-A (P.A.), dated 23-1-1986.]

The Coupons shall be available in book, each coupons books shall contain the Money Value Coupons as under:-

(1) [

[Substituted by M.P. Notification No. 2389-One(2)-63-XLVIII-2001 (P.A.), dated 24-12-2001.]

12 coupons of Rs. 100 each

Rs.

1200

08 coupons of Rs. 50 each
Rs.
400
12 coupons of Rs. 20 each
Rs.
240
08 coupons of Rs. 10 each
Rs.
80
12 coupons of Rs. 5 each
Rs.
60
20 coupons of Rs. 1 each
Rs.
20
Total:
Rs.
2000.00]
(2)
8 coupons of
Rs. 25 each
Rs.
200
12 coupons of
Rs. 10 each
Rs.
120
20 coupons of
Rs. 5 each
Rs.
100
80 coupons of
Rs. 1 each
Rs.
80
Total
Rs.
500
(3)
4 coupons of
Rs. 25 each
Rs.
100
4 coupons of
Rs. 10 each
Rs.
40
4 coupons of
Rs.5 each
Rs.
20

40 coupons of
Rs. 1 each
Rs.
40
Total Rs. 200.00

(4)
4 coupons of
Rs. 10 each
Rs.
40
8 coupons of
Rs. 5 each

Rs.
40
20 coupons of
Rs. 1 each
Rs.
20
Total
Rs.
100.00]

(2)

Each coupon book will be numbered with the book number, and each coupon therein with the book number and coupon number in serial order.

6.

Price of coupon books.

- The price of each coupon book shall be such as may be notified by the Railway Administration from time to time.

7.

[

[Substituted by M.P. Notification No. 2389-One(2)-63-XLVIII-2001 (P.A.), dated 24-12-2001.]

Every coupon book shall contain the following certificate affixed by the Secretary, namely :-

"I hereby certify that Shri/Shrimati/Kumariis the member of the Madhya Pradesh Legislative Assembly and First Class air conditioned/First Class/air conditioned Sleeper/Second Class Sleeper/Second Class Tickets may be issued in exchange of the rail travel coupons which shall entitle him/her to travel alone by first class air conditioned or with one person accompanying him by first Class/air-conditioned Sleeper or Second Class Sleeper or Second Class within the State of Madhya Pradesh without any restriction and outside the State of Madhya Pradesh only to the extent of 6000 Kilometres per year under sub-section (1) of Section 5-A of the Act."

Signature of Member

Attested

Secretary to the Madhya Pradesh Legislative Assembly.

Secretary to the Madhya Pradesh Legislative Assembly].

8.

Things required to be done before Issue of coupon books.

(1)

The name of the member to whom a coupon book is issued shall filled in by the Secretary before it is issued to him.

(2)

The Secretary shall get the following declaration (which shall be printed on covered page of every such book) duly signed by the member before any such coupon book is issued namely :

"I Shri/Shrimati/Kumari.....hereby declare that [the concession]

[Substituted by Notification. No. 532-XXI-A (P.A.), dated 23-1-1986.]

will be used by me and one person accompanying me for journeys within the State of Madhya Pradesh and outside the

State admissible to me under Section 5-A of the Madhya Pradesh Vidhan Sabha Sadasya Vetan, Bhatta Tatha Pension Adhiniyam, 1972 (No. 7 of 1973).

Signature of Member

Attested

Secretary to Madhya Pradesh Legislative Assembly.

Secretary to Madhya Pradesh Legislative Assembly.

9.

Number of coupon books to be used at a time and their availability.

- [(1) (a) Coupon books shall be issued at a time for such money value as may entitle a member and a person accompanying him to travel for not more than 6000 Kms. within the State and not more than 3000 Kms. outside the State;

(b)

[On the basis of declaration made by the member in the form given in the Schedule the fresh coupon book shall be issued to the member after the Secretary is satisfied that the coupon book, previously issued to such member have been used up by such member and the counter-foils of the coupons duly completed and signed have been received back.]

(c)

The coupon books for travel within the State and for travel outside the State shall be of different colours.

(d)

Where unused coupons are not returned by the member before the expiry of the period of validity, the cost thereof shall be recoverable from the member by the Secretary.]

(2)

The coupon book shall be available for use only the member whose name is specified thereon.

(3)

A coupon book can be issued from any date and will be valid for one year.

(4)

The Secretary shall maintain account of the Coupon books issued to each member under these rules.

(5)

[If the Secretary is satisfied it is necessary or expedient so to do, he may issue necessary instructions on obtaining approval of Speaker with regard to check misuse of and for maintenance of proper accounts of railway transit coupons issued in accordance with the provisions of Section 5-A of the Act and the rules made thereunder.]

[Inserted by Notification No. F. 4-XLVIII-87 (P.A.), dated 4-5-1987.]

10.

Coupon Books and Coupons not transferable.

(1)

The coupon books issued under these Rules and the coupons therein shall be non-transferable and shall be used only for journeys by the persons on whose favour they are issued.

(2)

In the event of any person ceasing to be a member, the coupon book shall be returned to the Secretary.

11.

Journey outside the State how computed.

- Journey out-side the State shall be computed as follows :-

(1)

From a place within the State to a place outside the State that much journey as is between the [last railway station within the State]

[Substituted by Notification No. 3155-F-4-81-XXI-A (P A.), dated 5-2-1981.]

and the destination outside the State.

(2)

From a place outside the State to a place within the State only that much journey as is between starting station outside the State and the [first railway station within the State.]

[Substituted by Notification No. 3155-F-4-81-XXI-A (P.A.), dated 5-2-1981.]

(3)

[Journey of the nature referred to in Section 6 outside the State for which a member is entitled to first class railway fare under sub-rule (1-B) of Rule 3 of the Madhya Pradesh Legislature Travelling Allowance Rules, 1957 shall be excluded.]

[Inserted by Notification No 22993-XXI-A (P.A.), dated 24-9-1982.]

12.

Method of purchasing tickets with coupons.

- [(1) The Secretary shall provide a member with an identity card bearing the photograph of the member and signature of the Member duly attested by the Secretary.]

[Substituted by Notification No. 532-XXI-A (P.A.), dated 23-1-1986.]

(2)

Any member desiring to undertake a journey shall present the coupon book to the booking clerk without detaching any coupon therefrom. Loose Coupons. i.e., coupons detached from a coupon book, shall not be accepted in any circumstances.

(3)

The booking clerk shall personally remove from the coupon book the number of coupons necessary for the journey. Before removing the coupons, the booking clerk may ask the holder of the coupon book to show his identity card and to write his or her signature on a piece of paper for the purpose of comparing it with the signature in the coupon book. Where coupons, in excess of those actually required, are detached from a coupon book by a booking clerk, a suitable remark such as "Wrongly detached" shall be made by the booking clerk on the back of the detached coupons the loose coupons with the remark so made shall be accepted when presented for the issue of a ticket, provided the coupon book from which the coupons have been detached, is produced and the period of availability of the said coupon book has not expired.

(4)

In exchange for the coupon or coupons, the booking clerk shall issue a single journey ticket, as may be required, after scoring out the fare printed thereon and writing on the reverse of the ticket in red ink the words "RT Coupons for members only" :

[Provided that a ticket for a person accompanying the member shall not be issued-

(i)

unless the ticket for the member himself for that journey has been issued,

(ii)

for the higher class than the class of ticket issued to the member].

Explanation. - If rail travel coupons from two different coupon books issued in favour of the same member are presented for issue of tickets, they shall, subject to the provisions of this rule, be accepted by the booking clerk.

12A.

[

[Inserted by Notification No. 3155-F-4-81-XXI-A (P.A.), dated 5-2-1981]

- Notwithstanding anything contained in Rule 12, where railway administration issued season ticket for journey between two railway stations within the State a member shall be entitled to purchase such ticket in exchange of coupons. Calculation of fare, period of validity, refund and other matters relating to season ticket shall be governed by the same conditions as are from time to time laid down by the Railway Administration for general public in this behalf.

12B.

- In respect of a season ticket purchased under Rule 12-A, the provisions of Rules 12, 13, 16, 17, 18, 19 and 20 shall, mutatis mutandis, apply.]

[Substituted by Notification No. 532-XXI-A (P.A.), dated 23-1-1986.]

13.

Identity of member.

- A member when travelling with the ticket issued to him under Rule 12 shall keep with him his identity card containing his photograph duly attested by the Secretary and produce the same when demanded by the railway authorities.

14.

Availability of a Ticket issued on Rail travel Coupons.

- The period of availability of a ticket shall, having regard to the date on which it is be the same as for ordinary tickets.

15.

Pilgrim and Terminal Taxes.

- When issuing a ticket in exchange for a rail travel coupon for journeys to and from stations at which pilgrim or terminal taxes are leviable, the pilgrim or terminal tax shall be collected in cash from the person presenting the coupon. The amount of tax so collected shall be entered on the face of the ticket.

16.

Luggage.

- A member shall be entitled to carry such luggage free of charge as is permissible on ordinary tickets, and the member shall pay in cash for the excess luggage, if any, at the luggage rate prescribed by the Railway Administration concerned.

17.

Unchanged Coupons.

- Any member found travelling on unexchanged rail travel coupon shall be considered as travelling without a ticket, and shall be liable to the prescribed penalties. In such cases, the fares and excess charges shall be paid by such member in cash.

18.

[Use of coupons.

[Substituted by Notification No. 532-XXI-A (P.A.), dated 23-1-1986.]

- The rail travel coupons shall, for the journey, within the State and subject to the provisions of Section 5-A of the Act outside the State, be used for the purpose of exchanging them for passenger tickets and for payment of reservation fee, supplementary surcharge and sleeper surcharge at the booking office of the railway concerned. The railway travel coupon shall also be used, for payment reservation fee supplementary surcharge, sleeper surcharge and charges for extended journey in running train.]

[Substituted by Notification No. F-4-XLVIII-87 (P.A.), dated 4-5-1987.]

19.

Confiscation of Coupons.

- The Railway Administration may confiscate a coupon book on proof that the conditions on which it has been issued have not been observed. Before doing so, it should refer the matter to the Secretary and obtain his approval for such confiscation. On such confiscation the value of the coupon books shall be refunded to the Secretary.

20.

Refunds.

(1)

Refunds on unused coupons returned to the Railway Administration concerned by the Secretary will be granted after deduction of 10 per cent, on the value of unused coupons provided they are returned to the Railway within one month after the period of their validity.

(2)

Refunds will not be granted on unused or partly used tickets issued in exchange for coupons except in exceptional circumstances, when refund should be allowed subject to the usual cancellation charges as applicable under the existing rules.

(3)

[The refund shall in all cases be made only to the Secretary and the cancellation charges referred to in sub-rule (2) shall also be borne by the Secretary.]

[Substituted by Notification No. 3155-F-4-81-XXI-A (P.A.), dated 5-2-1981.]

21.

Rule 10 to 20 to be printed on coupon books.

- Each coupon book shall have printed thereon in extense the provisions of Rules 10 to 20, both inclusive.

22.

[
[Inserted by Notification No 472-F-1 (2) 57-XLVIII-90 (P.A.), dated 20-3-1991.]

If the coupon book of a member is lost or stolen and the member gives an information in writing to the Secretary to that effect and if the speaker is satisfied, he may write off such coupons valuing rupees upto [10000/- (Rs. ten thousand)]. The speaker shall exercise this power once only between the period of commencing from the constitution and ending

with the dissolution of the Madhya Pradesh State Legislature in respect of such member :]

[Provided that in case of death of the member, the Speaker may write off the remaining amount on the basis of information received in writing from the family of deceased member.]

[Inserted by Notification No. 1283-One-(8)54-03-II-XLVIII, dated 1-7-2006.]

[Schedule]

[Substituted by Notification No. 472-F. 1(2) 57-XLVIII-90 (P.A.), dated 20-3-1991.]

Form

[See Rule 9 (1)(b)]

Statement of the journey undertaken by rail transit coupons used by members.

Declaration

Shri/Smt./Ku..... member of Vidhan Sabha constituency No.....hereby declare that :-

(i)

Coupon Book No.....of Rs..... (For the journey within the State).

(ii)

Coupon Book No of Rs (For journey outside the State)

have been used by me and the person accompanying me and its counterfoils have been returned. I and the person accompanying me have undertaken journey within the State for kms./outside the State for kms.

I, hereby return unused coupons of Rs.....for the journey within the State and of Rs.....for the journey outside the State.

.....Signature of the Member

Date.....

Please issue rail transit coupons as specified below :-

(1)

Coupon book for travel within the State.

For the member himself and person accompanying him worth

Rs.....

(2)

Coupon book for travel outside the State.

For the member himself and person accompanying him worth

Rs.....

Issued.Clerk Officer).

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